



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8348 (EXTENSION)
THIRD REVISION February 27, 1987

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8348 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan L. Roberts
Alan L. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 19 1991

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Frell, Inc.
Corpus Christi, TX

July 19, 1991



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DOT-E 8348
(THIRD REVISION)

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FEB 27 1987

1. **Frell, Incorporated, Corpus Christi, Texas** is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark, and sell certain non-DOT specification cargo tanks as described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification cargo tank which may have a full opening rear head, and provides no relief from any regulation other than specifically stated.

2. **BASIS.** This exemption is based on Frell, Incorporated's applications dated October 16 and December 15, 1986, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Liquid and semi-solid waste material, including mixtures, compatible with the packaging, containing flammable liquids or corrosives or poison B materials, or combinations thereof, classed as flammable liquid, corrosive material or poison B as appropriate.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Specific commodity name, or generic description, as appropriate.

5. **REGULATION AFFECTED.** 49 CFR 173.119(a) and (m), 173.245(a), 173.346(a), 178.340-7, 178.342-5, 178.343-5.

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification cargo tank designed and constructed in full compliance with DOT Specification MC-307 or MC-312 (49 CFR 178.340, 178.342, 178.343) except as follows:

a. - The cargo tank must be designed, built and certified in accordance with Section VIII of the ASME Code to a minimum design pressure as follows:

Basic Cargo Tank Specification	Design Pressure (psig)		Minimum Test Pressure (psig)
	Internal (See Note 1)	External (See Note 2)	
MC 307	25	15	37.5
MC 312	25	15	37.5

Note 1: The design pressure must be at least equal to the maximum pressure used for unloading.

Note 2: Vacuum tanks must have an external design pressure of at least 15 psi.

b. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

c. In place of internal valves prescribed in 49 CFR 178.342-5(a) and 178.343-5(b), each tank may be equipped with one 6-inch maximum diameter bottom outlet with remote closure with self closing gate, plug or butterfly valve and one optional 4-inch maximum diameter bottom inlet with gate, plug or butterfly valve located near the rear of tank in accordance with Drawing 14 dated February 3, 1979 on file with the Office of Hazardous Materials Transportation (OHMT). Each bottom outlet and each bottom inlet must be equipped with an additional shut-off valve, or a blank flange or a sealing cap.

d. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-307 or MC-312 specifications but instead must bear reference to DOT-E 8348.

e. Tanks that are to be used in transporting flammable waste materials must be equipped with a spring loaded relief valve.

f. Each cargo tank manufactured with a full opening rear head must be as shown on the Frell, Inc. drawing entitled "Rear Dump Door - Gravity Open" dated September 26, 1986, on file with the OHMT.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Each cargo tank (except those with full opening rear heads) must be reinspected and retested once every two years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-307 or MC 312 cargo tanks, as appropriate, at one and one-half times the design pressure.

d. Each cargo tank with a full opening rear head must be reinspected and retested once each year in accordance with the requirements contained in paragraph c above. Additionally, the gaskets on the full opening rear head must be: (1) cleaned after each load; (2) visually inspected at least once every three months for cracks or splits caused by weather or wear; and (3) replaced if cuts or cracks of one-half inch or more are found.

- e. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8348."
 - f. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMT prior to initial shipment.
 - g. The first cargo tank manufactured with a full opening rear head must be hydrostatically tested to 45 psig prior to initial shipment.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or cargo tank rollover must be reported to the OHMT as soon as practicable.
10. EXPIRATION DATE. October 1, 1987.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials Transportation

FEB 27 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA.